MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into as of March 2, 2026 (the "Effective Date") between Larkspur Systems, Inc., a Delaware corporation ("Provider"), and Brightwater Logistics LLC, an Oregon limited liability company ("Customer"). Provider and Customer agree as follows.

1 Services

Provider will make the Larkspur Route Intelligence platform (the "Service") available to Customer and its authorized users under this agreement and each order form that both parties have signed. Provider may update the Service from time to time, provided that Provider gives notice of any update that will materially reduce the functionality of the Service during a paid term.

2 Term

The initial term of this Agreement begins on the Effective Date and continues for thirty-six (36) months (the "Initial Term").

3 Renewal

After the Initial Term, this Agreement renews automatically for successive twelve (12) month terms unless Customer gives writen notice of non-renewal at least sixty (60) days before the end of the then-current term.

4.1 Fees

Customer will pay Provider an annual subscription fee of $184,000 for the Service, invoiced annually in arrears. All fees are in US dollars and do not include taxes.

4.2 Payment Terms

Customer shall pay each undisputed invoice within thirty (30) business days of the invoice date. Customer must notify Provider of any disputed amount after the due date and pay the undisputed portion on time.

4.3 Late Payment

Overdue amounts accrue interest at the rate of 1.5% per year, or the highest rate permitted by law if lower, from the due date until paid.

4.4 Fee Adjustments

Provider may increase the fees for any renewal term by up to 5% over the fees for the preceding term if it gives notice no later than ninety (90) days before the renewal date.

5 Service Levels

Provider will keep the Service available at least 99.9% of each month. If Provider fails to meet this commitment in a calendar month, Customer will recieve a service credit equal to 5% of the monthly fee for each full hour of unavailability, up to a maximum of 10% of the monthly fee for that month. Service credits are one of Customer's remedies for unavailability.

6 Customer Data

Customer owns all data it submits to the Service ("Customer Data"). Provider will process Customer Data to provide the Service and to improve Provider's products. For thirty (30) days after termination or expiration, Provider will make Customer Data available for export, after which Provider will delete it.

7 Intellectual Property

Provider retains all right, title and interest in the Service, including all configurations, integrations and improvements developed in connection with this Agreement. This Agreement transfers ownership of the intellectual property described in an order form to Customer.

8 Confidentiality

Each party will protect the other party's confidential information with reasonable care, and will use it solely for the performance of this Agreement. These obligations continue for three (3) years after termination or expiration of this Agreement.

9 Limitation of Liability

Except for a party's indemnification obligations, each party's total liability arising out of or related to this Agreement will not exceed the fees paid by Customer under this Agreement in the twelve (12) months before the event giving rise to the claim. Customer will not be liable for indirect, incidental or consequential damages.

10 Indemnification

Provider will defend Customer against any third-party claim that the Service infringes a trademark, patent or copyright, and will pay damages finally awarded. Customer will defend Provider against any third-party claim arising from Customer Data.

11 Termination

Either party may terminate this Agreement for any breach if the breach is not cured within thirty (30) days after written notice. Neither party may terminate this Agreement for convenience during the Initial Term or any renewal term.

12 Audit

No more than once per year, and on at least thirty (30) days' written notice, Customer may review Provider's then-current security reports. Each audit will be conducted during business hours and at Provider's expense.

13 Assignment

Neither party may assign this Agreement without prior notice to the other party, except to a successor in a merger or sale of substantially all of its assets. Any seperate attempt to assign is void.

14 Notices

Notices must be in writing and sent to the addresses below. Provider: Larkspur Systems, Inc., 1200 Cascade Avenue, Suite 900, Wilmington, Delaware 19801. Customer: Brightwater Logistics LLC, 410 Quay Street, Suite 200, Portland, Oregon 97204. E-mail notice is effective when acknowledged.

15 Governing Law

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict of laws rules. The parties submit to the exclusive jurisdiction of the state and federal courts located in Wilmington, Delaware.

16 General

This Agreement, together with each order form, is the entire agreement between the parties and supersedes all prior discussions. An amendment is valid only if it is written and both parties sign it. If any provision is unenforceable, the rest of this Agreement remains in force.

Larkspur Systems, Inc.
By: _____
Name: Dana Okafor
Title: VP, Deal Desk

Brightwater Logistics LLC
By: _____
Name: Priya Raman
Title: Head of Procurement